

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2203564

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: G. MARTIN

PLAINTIFF: DANIEL BISSMEYER

vs.

DEFENDANT: KONIKU, INC.

NATURE OF PROCEEDINGS: 1) MOTION - RELIEVE COUNSEL
2) MOTION - RELIEVE COUNSEL

RULING

Counsel for Defendants Oshioyenoya E. Agabi and Koniku, Inc. A Delaware Corporation ("Defendants"), Inc, with personal service of papers upon Oshioyenoya Agabi, filed a motion to be relieved as counsel. A long cause jury trial is set for October 20, 2026, and the court anticipates that there will be no further continuances.

Daniel Bissmeyer ("Plaintiff") did not serve an Opposition to Defendants/Cross-Complainant. The failure to oppose is considered consent to the request. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Counsel's motion is therefore GRANTED in it's entirety.

Counsel is to lodge the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens)

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2204259

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: G. MARTIN

PLAINTIFF: JENNIFER SWIFT

vs.

DEFENDANT: UNITED PARCEL SERVICE,
INC., ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Both parties have appeals pending with the California Court of Appeal, First Appellate District. Defendant filed its Notice of Appeal on March 30, 2026. Defendants United Parcel Service, et al., filed an appeal to the court's order issued on March 4, 2026. Plaintiff Jennifer Swift filed a Petition for Writ of Mandate to an order issued by Hon. Andrew Sweet on March 2, 2026. The matter was transferred from Judge Sweet to this department on January 2, 2026.

The court entered an order staying execution and enforcement of prior orders on May 8, 2026.

The pending motions to compel filed by the Plaintiff are also stayed, pending the proceedings before the appellate court.

A Case Management Conference is set for November 18, 2026, at 9 a.m. in this department, re Status of Appeal.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.